

THOMAS, J., concurring

at 683 (“[I]t is irrelevant to a ‘special factors’ analysis whether the laws currently on the books afford [plaintiff] an ‘adequate’ federal remedy for his injuries”).¹²

When evaluating whether to extend *Bivens*, the most important question “is ‘who should decide’ whether to provide for a damages remedy, Congress or the courts?” *Abbasi*, 582 U. S., at 135 (quoting *Bush*, 462 U. S., at 380). The correct “answer most often will be Congress.” 582 U. S., at 135. That is undoubtedly the answer here.

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The judgment of the United States Court of Appeals for the Fifth Circuit is affirmed.

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

The Court correctly applies our precedents to conclude that the implied cause of action created in *Bivens* v. *Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), should not be extended to cross-border shootings. I therefore join its opinion.

I write separately because, in my view, the time has come to consider discarding the *Bivens* doctrine altogether. The foundation for *Bivens*—the practice of creating implied causes of action in the statutory context—has already been abandoned. And the Court has consistently refused to extend the *Bivens* doctrine for nearly 40 years, even going so far as to suggest that *Bivens* and its progeny were wrongly decided. *Stare decisis* provides no “veneer of respectability to our continued application of [these] demonstrably incorrect precedents.” *Gamble* v. *United States*, 587 U. S.

¹² Indeed, in *Abbasi* we explained that existence of alternative remedies was merely a further reason not to create *Bivens* liability. See 582 U. S., at 145 (“[W]hen alternative methods of relief are available, a *Bivens* remedy usually is not”).